

UNITED STATES INTERNATIONAL TRADE COMMISSION
Washington, D.C.

In the Matter of

**CERTAIN PORTABLE POWER STATIONS
AND PACKAGING THEREFOR**

**Investigation No. 337-TA-563
(Modification)**

ORDER

On November 9, 2006, the Commission issued a limited exclusion order (“LEO”) in the above-captioned investigation based on a complaint filed by Roadmaster (USA) Corporation (“Complainant”) alleging violations of section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337 (“section 337”), in the importation into the United States, the sale for importation, and the sale within the United States after importation of certain portable power stations and packaging therefor by reason of infringement of U.S. Design Patent No. D469,739 (“the D’739 patent”); U.S. Trademark Registration No. 2,594,538 (“the ’538 mark”); and U.S. Copyright Registration No. VA-1-261-495. 71 Fed. Reg. 66554 (Nov. 15, 2006). The LEO was directed to respondent Sinochem Ningbo, Ltd. of Ningbo, China. *Id.*

The LEO included a requirement that Complainant make annual filings with the Commission stating whether it continued to use the ’538 mark in commerce, but the Complainant has not made any such filings since 2007. In addition, the D’739 patent has expired and the ’538 mark has been canceled by the U.S. Patent and Trademark Office due to a failure to file a declaration of continued use. *See* U.S. Trademark Registration No. 2,594,538, Cancelled/Expired (USPTO Trademark Status & Document Retrieval, Feb. 22, 2013).

On March 24, 2026, the Commission issued a notice requesting written submissions from the public, the parties to the investigation, and other interested parties, on whether the LEO should be modified or rescinded under 19 U.S.C. 1337(k) and 19 CFR 210.76, in whole or in part. 91 Fed.

Reg. 14879-80 (Mar. 27, 2026). The Commission did not receive any submissions in response to this notice.

Based on the foregoing and the lack of any response to the Commission's notice, the Commission has determined to institute a modification proceeding pursuant to Commission Rule 210.76, 19 C.F.R § 210.76. In consideration of the expiration of the D'730 patent, the cancellation of the '538 mark, and Complainant's failure to comply with the LEO's annual filing requirement to show continued use of the '538 mark, the Commission has determined that changed conditions of fact warrant modification of the LEO under 19 U.S.C. § 1337(k). The modification proceeding is terminated.

Accordingly, the Commission hereby **ORDERS** that:

1. Pursuant to 19 U.S.C. § 1337(k) and 19 C.F.R § 210.76, the limited exclusion order issued in this investigation is modified to rescind the exclusions based on infringement of the D'739 patent and the '538 mark.
2. The Secretary shall serve copies of this Order upon each party of record in this investigation.
3. Notice of this Order shall be published in the *Federal Register*.

By order of the Commission.

A handwritten signature in black ink, appearing to read 'Lisa R. Barton', is positioned above the printed name and title.

Lisa R. Barton
Secretary to the Commission

Issued: July 31, 2026

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Inv. No. 337-TA-563

PUBLIC CERTIFICATE OF SERVICE

I, Lisa R. Barton, hereby certify that the attached **ORDER, COMMISSION** has been served via EDIS upon the following parties as indicated, on **August 3, 2026**.



Lisa R. Barton, Secretary
U.S. International Trade Commission
500 E Street, SW, Room 112
Washington, DC 20436

<u>On Behalf of Complainant Roadmaster (USA) Corporation:</u>	
James Greenberg Robert Zielinski Charles Hart WOLF, BLOCK, SCHORR AND SOLISCOHEN LLP 1650 Arch Street, 22nd Floor Philadelphia, PA 19103	☐ Via Hand Delivery ☒ Via Express Delivery ☐ Via First Class Mail ☐ Other: Email Notification of Availability for Download
<u>Complainant:</u>	
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